

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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NELSON RODRIGUEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE JEROME BURNS (Shield No. 7971)
of Narcotic Boro Manhattan North
and DETECTIVE JOSE RAMOS (Shield No. 03610)
of Narcotic Boro Manhattan North,**

Defendants.

Index No. _____
Purchased _____
Plaintiff designates New York
County as the place of trial

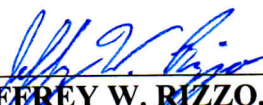
The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 16, 2013



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
NELSON RODRIGUEZ,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT
DETECTIVE JEROME BURNS (Shield No. 7971)
of Narcotic Boro Manhattan North
and DETECTIVE JOSE RAMOS (Shield No. 03610)
of Narcotic Boro Manhattan North,**

Defendants.

-----X

Plaintiff NELSON RODRIGUEZ, by his attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff NELSON RODRIGUEZ
("MR. RODRIGUEZ") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK ("CITY"), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant DETECTIVE JEROME
BURNS (Shield No. 7971) of Narcotic Boro Manhattan North (hereinafter BURNS),
was and still is a Detective employed by the Defendant CITY and the NEW YORK CITY
POLICE DEPARTMENT ("NYPD").

4. On and prior to April 19, 2012, BURNS was employed by Defendants CITY and NYPD and was assigned in the Borough and County of New York, City and State of New York.

5. The actions of BURNS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, Defendant DETECTIVE JOSE RAMOS (Shield No. 03610) of Narcotic Boro Manhattan North (hereinafter RAMOS), was and still is a Detective employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to April 19, 2012, RAMOS was employed by Defendants CITY and NYPD and was assigned in the Borough and County of New York, City and State of New York.

8. The actions of RAMOS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

9. On or about April 19, 2012, BURNS AND RAMOS, acting as agents, servants and employees of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. RODRIGUEZ of having committed the crime of Criminal Sale of a Controlled Substance in the Third Degree (P.L. § 220.39) and Criminal Sale of a Controlled Substance in or Near School Grounds (P.L. § 220.44) at a location in New York County.

10. On or about April 19, 2012, Defendants, their agents, servants and/or employees, intentionally placed MR. RODRIGUEZ under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

11. On or about April 19, 2012, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. RODRIGUEZ was commenced.

12. After his arrest on April 19, 2012, MR. RODRIGUEZ was arraigned in Criminal Court – New York County and bail was set.

13. On or about April 27, 2011, MR. RODRIGUEZ testified before a Grand Jury.

14. On or about April 30, 2012, the Grand Jury voted a “no true bill” and MR. RODRIGUEZ was released.

15. All charges were dismissed on application of the District Attorney’s Office on June 8, 2012.

16. As a result of the treatment of MR. RODRIGUEZ by the Defendants, MR. RODRIGUEZ was denied liberty by being falsely arrested and imprisoned for approximately eleven (11) days.

17. MR. RODRIGUEZ suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for eleven (11) days, MR. RODRIGUEZ suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

18. On November 26, 2012, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

19. On November 30, 2012, Plaintiff filed a motion by Order to Show Cause seeking leave from the Court for the previously filed late Notice of Claim to be deemed timely served. Plaintiff's motion, Index No. 158459/2012, was granted on February 7, 2013.

20. On January 30, 2013 a hearing was conducted pursuant General Municipal Law Section 50-h and MR. RODRIGUEZ was questioned as to all claims.

21. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

22. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

23. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

24. Paragraphs 1-23 are incorporated by reference as fully set forth herein.

25. On April 19, 2012 at approximately 3:45 p.m., in the vicinity of 511 West 181st Street in New York County, Defendants BURNS AND RAMOS wrongfully touched, grabbed, handcuffed and seized MR. RODRIGUEZ, in an excessive manner about his person, causing MR. RODRIGUEZ physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. RODRIGUEZ was aware of his arrest and confinement as described in paragraphs 1-23, and he did not consent to that arrest or confinement, nor was it privileged by law.

26. As a result of being falsely arrested by the Defendants, MR. RODRIGUEZ sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately twenty-four (24) hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. The Defendants, their agents, servants and employees, arrested and confined MR. RODRIGUEZ, as described in paragraphs 1-26, and intended to confine MR. RODRIGUEZ. MR. RODRIGUEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

29. As a result of being falsely imprisoned by the Defendants, MR. RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. In arresting MR. RODRIGUEZ, BURNS AND RAMOS, acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

32. In arresting MR. RODRIGUEZ, BURNS AND RAMOS, acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, sought either a detriment to MR. RODRIGUEZ or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

33. As a result of the abuse of process by the Defendants, MR. RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. On or about April 19, 2012, and from that time until June 8, 2012 when Plaintiff was acquitted after a trial, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or

causing a felony complaint to be filed in the Criminal Court of the City of New York, New York County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

36. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

37. The commencement of these criminal proceedings under Docket No. 2012NY031746 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

38. As a result of being maliciously prosecuted by the Defendants, MR. RODRIGUEZ was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.

40. On April 19, 2012 at approximately 3:45 pm in the vicinity of 511 West 181st Street in New York County, Defendant BURNS and RAMOS along with other New York City police officers, wrongfully touched, grabbed, pushed, punched, handcuffed and seized MR. RODRIGUEZ, in an excessive manner about his person, causing MR. RODRIGUEZ physical pain and mental suffering.

41. That on or about April 19, 2012, and while in the custody of the defendants in the County of New York, City of New York, the Plaintiff MR.

RODRIGUEZ was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by BURNS and RAMOS, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

42. That on or about April 19, 2012, BURNS and RAMOS, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. RODRIGUEZ in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. RODRIGUEZ and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. RODRIGUEZ and caused such battery in and about his chest, body and limbs. Despite the lack of reasonable cause, probable cause or any other legal authority to conduct a strip search, MR. RODRIGUEZ was forced to submit to two separate strip searches while in the custody of the Defendants. At no time did MR. RODRIGUEZ consent to the aforesaid assault and battery.

43. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of MR. RODRIGUEZ, was an assault and battery beyond that which was necessary to make the arrest.

44. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular BURNS and RAMOS, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. RODRIGUEZ suffered bodily injury in and about his face, head, body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

SIXTH CAUSE OF ACTION: NEGLIGENCE

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.

46. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

47. As a result of the negligence of the Defendants, MR. RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

49. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training BURNS AND RAMOS, as well as all of the other NYPD officers involved in this matter.

50. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

51. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

52. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

53. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including BURNS AND RAMOS.

54. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including BURNS AND RAMOS.

55. As a result of the negligence of Defendants CITY and NYPD and BURNS AND RAMOS, MR. RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

56. Paragraphs 1-55 are incorporated by reference as though fully set forth herein.

57. Defendants CITY and NYPD had the responsibility for hiring BURNS AND RAMOS.

58. Defendants CITY and NYPD were negligent in hiring BURNS AND RAMOS.

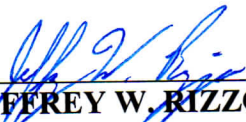
59. As a result of the negligence of the Defendants, MR. RODRIGUEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

60. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
July 16, 2013

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, NY 10451
718-618-7509

VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

NELSON RODRIGUEZ, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.


NELSON RODRIGUEZ

Sworn to before me, this 16th day of July, 2013.

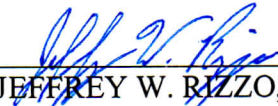


Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2016

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



JEFFREY W. RIZZO, ESQ.